

CHAPTER 59

An Act to amend the law with respect to the revocation of adoption orders in cases of legitimation, and to make further provision in connection with the revocation of such orders under section twenty-six of the Adoption Act, 1958. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where any person legitimated by virtue of section one of the Legitimacy Act, 1959, had been adopted by his father and mother before the commencement of that Act, the court by which the adoption order was made may, on the application of any of the parties concerned, revoke that order. Further provision for revocation of adoption orders in cases of legitimation.

(2) The revocation of an adoption order under this section, or under section twenty-six of the Adoption Act, 1958, shall not affect the operation of sections sixteen and seventeen of that Act in relation to an intestacy which occurred, or a disposition which was made, before the revocation. 7 & 8 Eliz. 2. c. 73. 7 & 8 Eliz. 2. c. 5.

(3) This section shall be construed as one with section twenty-six of the Adoption Act, 1958; and any reference in that Act to that section or to subsection (1) of that section shall be construed as including a reference to subsection (1) of this section.

2.—(1) This Act may be cited as the Adoption Act, 1960. Short title and extent.

(2) This Act does not extend to Northern Ireland.

CHAPTER 60

Betting and Gaming Act, 1960

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An Act to amend the law with respect to betting and gaming and to make certain other amendments with a view to securing consistency and uniformity in, and facilitating the consolidation of, the said law and the law with respect to lotteries; and for purposes connected with the matters aforesaid. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

BETTING

1.—(1) The Betting Acts, 1853 and 1874, and, so far as it relates to betting, section four hundred and seven of the Burgh Police (Scotland) Act, 1892, shall cease to have effect, and the following provisions of this section shall have effect in place thereof. Replacement of Betting Act, 1853, etc., by new provision

(2) Save as permitted by virtue of subsection (5) of this section or subsection (1) of section four of this Act, no person shall use, or cause or knowingly permit any other person to use, any premises for the purpose of the effecting by that person or, as the case may be, by that other person of betting transactions with persons resorting to those premises; and any person who contravenes the provisions of this subsection shall be guilty of an offence:

Provided that this subsection shall not apply where both the person so using the premises and all the persons with whom the

PART I betting transactions are effected—

(a) either reside or work on those premises or on premises of which those premises form part ; or

(b) are, or are acting on behalf of, holders of bookmaker's permits which are for the time being in force,

and, without prejudice to section three of the Betting and Lotteries Act, 1934, shall also not apply in relation to pool betting transactions.

(3) Any person who, for any purpose connected with the effecting of a betting transaction, resorts to any premises which are being used in contravention of the last foregoing subsection or of subsection (2) of section three of the Betting and Lotteries Act, 1934 (which restricts the premises which may be used as a place where persons resorting thereto may effect pool betting transactions) shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) For the purposes of the last foregoing subsection proof that any person was on any premises while they were being used as mentioned in that subsection shall be evidence that he resorted to the premises for such a purpose as is so mentioned unless he proves that he was on the premises for bona fide purposes which were not connected with the effecting of a betting transaction.

(5) In subsection (1) of section one of the Racecourse Betting Act, 1928, and in section twelve of the Betting and Lotteries Act, 1934 (which provide for certain exemptions from the Betting Act, 1853, in the case of approved horse racecourses and licensed tracks), for any reference to the said Act of 1853 there shall be substituted a reference to subsection (2) of this section ; and in the said section twelve for the words " anything done on any licensed track by a bookmaker " there shall be substituted the words " anything done on any track which is not an approved horse racecourse ".

(6) Subsection (4) of this section shall not apply to Scotland, but, in any proceedings in Scotland under subsection (3) of this section, if any person is proved to have been on any premises while they were being used as mentioned in the said subsection (3), that person shall be held to have resorted to the premises for such a purpose as is so mentioned unless he proves that he was on the premises for bona fide purposes which were not connected with the effecting of a betting transaction.

**Bookmaker's
permits.**

2.—(1) No person shall act as a bookmaker on his own account unless he is the holder of a permit authorising him so to act (in this Act referred to as a " bookmaker's permit ") which is for the time being in force ; and if any person acts as a bookmaker in contravention of this subsection he shall be guilty of an offence :

Provided that this subsection shall not apply to the receiving or negotiating by a person registered under the Pool Betting Act, 1954, of bets made by way of pool betting.

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(2) The First Schedule to this Act shall have effect for the purposes of bookmaker's permits.

3.—(1) No person shall by way of business receive or negotiate bets as servant or agent to another bookmaker or to the Board unless—

Authorisation
and registration
of agents by
bookmakers
and Board.

(a) he has attained the age of twenty-one years ; and

(b) he is authorised in that behalf in writing in the prescribed form by that other bookmaker or, as the case may be, by the Board ; and

(c) in the case of a person acting as servant or agent to another bookmaker, that other bookmaker is the holder of a bookmaker's permit or betting agency permit :

Provided that this subsection shall not apply to any person who is the holder of such a permit as aforesaid, or who receives or negotiates bets as aforesaid on premises occupied by the holder of such a permit or by the Board.

(2) If any bet is received or negotiated by any person as servant or agent to another bookmaker or to the Board in contravention of the foregoing subsection, both that person and that other bookmaker or, as the case may be, the Board shall be guilty of an offence.

(3) The Board and every bookmaker who is the holder of a bookmaker's permit or betting agency permit shall keep a register in the prescribed form showing every person who is for the time being authorised for the purposes of subsection (1) of this section by the Board or, as the case may be, by that bookmaker, and shall not grant any such authorisation without making the appropriate entry in that register ; and if any person contravenes any of the requirements of this subsection he shall, in respect of each contravention, be guilty of an offence.

(4) If any person who holds any authority in writing issued for the purposes of subsection (1) of this section or who is required by subsection (3) of this section to keep a register, on being required by a constable to produce that authority or, as the case may be, register for examination, refuses or without reasonable cause fails so to do, he shall be guilty of an offence.

(5) Any person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding ten pounds or, in the case of offences under subsection (2) or subsection (3) of this section, on a second or any subsequent conviction under the same subsection, to a fine not exceeding fifty pounds.

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(6) Nothing in this section shall apply to the receiving or negotiating by any person as servant or agent to a person registered under the Pool Betting Act, 1954, of bets made by way of pool betting.

**Betting office
licences and
betting agency
permits.**

4.—(1) Where in the case of any premises there is for the time being in force a licence authorising the holder of the licence to use those premises as a betting office (in this Act referred to as a “betting office licence”), then—

- (a) subsection (2) of section one of this Act shall not apply to the use of those premises for the effecting of any betting transaction with or through the holder of the licence or any servant or agent of his; and
- (b) subsection (2) of section three of the Betting and Lotteries Act, 1934, shall not apply to the use of those premises for the effecting of any such betting transaction by way of sponsored pool betting.

(2) The following persons, and the following persons only, may apply for the grant or renewal of a betting office licence in respect of any premises, that is to say—

- (a) a person who is for the time being the holder of, or an applicant for, a bookmaker's permit;
- (b) the Board;
- (c) a person who, not being the holder of, or an applicant for, a bookmaker's permit, is for the time being both—
 - (i) accredited by a bookmaker who is the holder of a bookmaker's permit or by the Board as an agent for the purpose of receiving or negotiating bets by way of business with a view to those bets being made with that bookmaker or, as the case may be, with or through the Board; and
 - (ii) the holder of, or an applicant for, a permit (in this Act referred to as “a betting agency permit”) authorising him to hold a betting office licence.

(3) An application for the grant of a betting office licence in respect of any premises may be made notwithstanding that the premises have still to be constructed or are still in the course of construction.

(4) Subject to the two last foregoing subsections, the First Schedule to this Act shall have effect for the purposes of betting office licences and betting agency permits.

**Conduct of
licensed
betting offices.**

5.—(1) A licensed betting office shall be managed in accordance with the rules set out in the Second Schedule to this Act, and in the case of any contravention of any of those rules the

PART I

licensee and any servant or agent of the licensee by whom the contravention was committed shall be liable on summary conviction to a fine not exceeding one hundred pounds:

Provided that, where any person is charged with an offence under this subsection by reason only of his being the licensee, it shall be a defence to prove that the contravention took place without his consent or connivance and that he exercised all due diligence to prevent it.

(2) Without prejudice to any other right to refuse a person admission to premises or to expel a person from premises, in the case of a licensed betting office the licensee or any servant or agent of his may refuse to admit to, or may expel from, the licensed premises any person who is drunken, violent, quarrelsome or disorderly, or whose presence on those premises would subject the licensee or any servant or agent of his to a penalty under the foregoing subsection; and if any person liable to be expelled from the licensed premises under this subsection, when requested by the licensee, any servant or agent of the licensee or any constable to leave those premises, fails to do so, he shall be liable on summary conviction to a fine not exceeding five pounds.

(3) Any constable may, on the request of the licensee or any servant or agent of the licensee, help to expel from a licensed betting office any person whom the constable has reasonable cause to believe to be liable to be expelled therefrom under the last foregoing subsection; and the constable may use such force as may be required for that purpose.

(4) Any constable may enter any licensed betting office for the purpose of ascertaining whether the provisions of subsection (1) of this section are being complied with, and any person who obstructs any constable in the exercise of his powers under this subsection shall be liable on summary conviction to a fine not exceeding ten pounds.

(5) If, save in a licensed betting office or in such manner as may be prescribed on premises giving access to such an office, any advertisement is published—

- (a) indicating that any particular premises are a licensed betting office; or
- (b) indicating where any such office may be found; or
- (c) drawing attention to the availability of, or to the facilities afforded to persons resorting to, such offices,

then, in the case of an advertisement in connection with the office or offices of a particular licensee, that licensee, and in every case any person who published the advertisement or caused or permitted it to be published, shall be guilty of an offence:

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Provided that it shall be a defence for any person charged with an offence under this subsection to prove—

- (i) that he did not know and had no reasonable cause to suspect that the advertisement was, and that he had taken all reasonable steps to ascertain that it was not, such an advertisement as aforesaid ; or
- (ii) if he is charged by reason only of being a licensee, that the advertisement was published without his consent or connivance and that he exercised all due diligence to prevent the publishing of any such advertisement in connection with his office or offices.

Increase of
penalties for
street betting.

6.—(1) Any person who commits an offence under subsection (1) of section one of the Street Betting Act, 1906, after the appointed day shall, instead of being liable to the penalty provided by paragraph (a), (b) or (c) of the said subsection (1), be liable on summary conviction to a fine not exceeding one hundred pounds or, in the case of a second conviction for such an offence committed after that day, to a fine not exceeding two hundred pounds or, in the case of a third or any subsequent conviction for such an offence so committed, to imprisonment for a term not exceeding three months or to a fine not exceeding two hundred pounds or to both.

(2) The day appointed for the purposes of this section shall not be earlier than six months after the day appointed for the coming into force of section four of this Act.

Betting
with young
persons.

7.—(1) If any person—

- (a) has any betting transaction with a young person ; or
 - (b) employs a young person in the effecting of any betting transaction or in a licensed betting office ; or
 - (c) receives or negotiates any bet through a young person,
- he shall be guilty of an offence :

Provided that a person shall not be guilty of an offence under this subsection by reason of—

- (i) the employment of a young person in the effecting of betting transactions by post ; or
- (ii) the carriage by a young person of a communication relating to a betting transaction for the purposes of its conveyance by post.

(2) In this section, the expression “ young person ” means a person—

- (a) who is under the age of eighteen years and whom the person committing an offence in relation to him under this section knows, or ought to know, to be under that age ; or
- (b) who is apparently under the said age :

Provided that in the case of any proceedings under this section for an offence in respect of a person apparently under the said age it shall be a defence to prove that at the time of the alleged offence he had in fact attained that age.

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(3) In paragraph (b) of subsection (1) of section seven, and in paragraph (d) of subsection (1) of section sixteen, of the Betting and Lotteries Act, 1934 (which empower the licensing authority to refuse to grant or, as the case may be, to revoke a licence in respect of any track on the ground of a conviction of the applicant for or holder of the licence, or, where the applicant or holder is a corporate body, any director or the manager thereof, for an offence under Part I of that Act) the reference to an offence under that Part of that Act shall be construed as including a reference to any offence under this section.

8.—(1) If the holder of a bookmaker's permit or of a betting agency permit is convicted—

Cancellation
and dis-
qualification
for book-
maker's or
betting agency
permit.

- (a) of an offence under the Street Betting Act, 1906, being an offence the penalty for which falls to be determined under section six of this Act; or
- (b) of an offence under subsection (2) of section one of this Act committed after the day appointed for the purposes of the said section six; or
- (c) of an offence under section one, two or three of the Betting and Lotteries Act, 1934; or
- (d) of an offence under section seven of this Act; or
- (e) of any offence involving fraud or dishonesty,

or if the holder of a betting agency permit is convicted of an offence under section two of this Act, the court by or before which he is convicted may, if the court thinks fit, order that his permit shall be forfeited and cancelled.

(2) An order under the foregoing subsection shall be deemed for the purposes of any appeal to be part of the sentence for the offence; and the permit shall not be forfeited or cancelled under that order—

- (a) until the date of expiration of the period within which notice of appeal against the conviction or sentence may be given; nor
- (b) if notice of appeal against the conviction or sentence is duly given within the period aforesaid, until the date of the determination or abandonment of the appeal.

(3) A person whose bookmaker's permit or betting agency permit is forfeited and cancelled in pursuance of an order under subsection (1) of this section shall, by virtue of that order, be disqualified for holding or obtaining a permit of either description for a period of five years beginning with the date of the conviction which gave rise to the order:

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Provided that, in a case where it appears to the court making the order to be just in all the circumstances, that court may include in the order a direction that the period of disqualification shall be such period shorter than five years as the court may specify.

(4) Where a bookmaker's permit or betting agency permit is forfeited and cancelled in pursuance of an order under subsection (1) of this section, the clerk of the court by which the order was made shall, unless he is also clerk to the authority which last either granted or renewed the permit, send a copy of the order to the clerk to that authority.

(5) Subsection (2) of this section shall not apply to Scotland, but the holder of a permit in respect of which an order under subsection (1) of this section is made by a court in Scotland may, without prejudice to any other form of appeal under any rule of law, appeal against the order in the same manner as against a conviction; and a permit shall not be forfeited or cancelled under an order so made—

(a) until the expiration of the period of fourteen days commencing with the date on which the order was made; nor

(b) if an appeal against the order or the conviction which gave rise thereto is taken within the said period, until the date when that appeal is determined or abandoned or deemed to have been abandoned.

Offences by
holder of
bookmaker's
or betting
agency
permit.

9.—(1) Any holder of a bookmaker's permit or betting agency permit who employs in his bookmaking business any person known to him to be for the time being disqualified under subsection (3) of section eight of this Act shall be guilty of an offence.

(2) If the holder of a bookmaker's permit or betting agency permit, on being required by a constable to produce his permit for examination, refuses or without reasonable cause fails so to do, he shall be liable on summary conviction to a fine not exceeding ten pounds.

Provision of
information
relating to
betting.

10. The clerk to any appropriate authority within the meaning of the First Schedule to this Act shall furnish the Secretary of State with such statistical information at such times as the Secretary of State may from time to time require with respect to the performance by the authority of their functions under that Schedule; and the Secretary of State shall in respect of each period of twelve months ending with the thirty-first day of May in any year lay before each House of Parliament a report containing, in such form as may appear to him convenient, statistical information with respect to the grant, renewal, cancellation and expiry without renewal of bookmakers' permits, betting agency

permits and betting office licences respectively in England or, as the case may be, Scotland during that period.

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11.—(1) The Board shall have power and the exclusive right to do, and to authorise other persons to do, either of the following things, that is to say—

Amendment
of powers,
rights and
duties of
Racecourse
Betting
Control Board.

- (a) to carry on pool betting business in any form on a recognised horse race ; and
- (b) by way of business to receive or negotiate bets on a recognised horse race on terms that the winnings or any part thereof shall be calculated or regulated directly or indirectly by reference to the amounts or rates of any payments or distributions in respect of winning bets on that race made by way of sponsored pool betting ;

and in giving any authority under this subsection the Board may do so on such terms, including terms as to payments to the Board, as the Board may think fit.

(2) Any infringement of the right conferred on the Board by the foregoing subsection shall be actionable at the suit of the Board ; and in any action for such an infringement all such relief, by way of damages, injunction, accounts or otherwise, shall be available to the Board as is available to the plaintiff in any corresponding proceedings in respect of infringements of proprietary rights and, notwithstanding anything to the contrary in any enactment or rule of law relating to the jurisdiction of county courts, a county court may, on the application of the Board, grant an injunction restraining an infringement or apprehended infringement of the right aforesaid whether or not any other relief is claimed ; and for the purposes of this subsection the right aforesaid is infringed by any person who, without the authority of the Board—

- (a) does or authorises any other person to do any thing such as is mentioned in paragraph (a) or (b) of the foregoing subsection ; or
- (b) by way of business holds himself out as willing to enter into any pool betting transaction on a recognised horse race, whether by way of sponsored pool betting or otherwise, or to receive or negotiate a bet on a recognised horse race on such terms as are mentioned in the said paragraph (b).

In the application of this subsection to Scotland, “suit” means instance, “injunction” means an interdict, “accounts” means count, reckoning and payment and “plaintiff” means pursuer.

(3) The Board shall have power—

- (a) with the approval of, and subject to any conditions imposed by, the Secretary of State, to engage in any activity connected with—

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- (i) the improvement of breeds of horses ;
- (ii) the advancement or encouragement of veterinary science or veterinary education ; or
- (iii) the improvement of the sport of horse racing ;
- (b) to acquire and hold such land as may be reasonably required for the purposes of any of the Board's functions and to sell or lease any land held by them which is not required for those purposes ;
- (c) to borrow for the purposes of any of their functions and to give security for any moneys borrowed by them ;
- (d) to lend or invest money for the purposes of or in connection with any activity in which the Board have power under paragraph (a) of this subsection to engage, and to make such other loans or investments as they judge desirable for the proper conduct of their affairs ;
- (e) to do all such things as are incidental to, or conducive to the attainment of the purposes of, any of their functions ;

and nothing in this Act or in the Racecourse Betting Act, 1928, shall be construed as restricting the betting transactions which may be effected by way of sponsored pool betting to betting transactions upon the result of a single race, or upon the results of races run on a particular racecourse or on a particular day, or as preventing the Board from giving credit in any betting transaction.

(4) Subject to paragraph (3) of section three of the said Act of 1928 and to subsections (1) and (2) of section eighteen of the Betting and Lotteries Act, 1934, the Board shall apply any moneys from time to time available in their hands (including any moneys in the totalisator fund immediately before the commencement of this section)—

- (a) in providing for the payment of rates, taxes, charges, expenses and other outgoings ;
- (b) in retaining such sums and making provision for such matters as they think proper in connection with any of their functions ;
- (c) in making such payments as they think fit for charitable purposes ;
- (d) subject to the foregoing paragraphs of this subsection, in making payments, in accordance with schemes from time to time prepared by the Board and approved by the Secretary of State, for purposes conducive to the improvement of breeds of horses or of the sport of horse racing or to the advancement or encouragement of veterinary science or veterinary education.

12.—(1) The provisions of this section shall apply in relation to any dog race on a licensed track in connection with which betting takes place by means of a totalisator on the track in accordance with the provisions in that behalf of the Betting and Lotteries Act, 1934.

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Restriction on
pool betting
and offering
of tote odds
on certain
dog races.

(2) The occupier of the track shall have the exclusive right to authorise any person—

- (a)** to carry on pool betting business on any such race as aforesaid ;
- (b)** by way of business to receive or negotiate bets on any such race on terms that the winnings or any part thereof shall be calculated or regulated directly or indirectly by reference to the amounts or rates of any payments or distributions in respect of winning bets on that race made by means of the totalisator,

and no person shall have the right to carry on any form of pool betting business on any such race or by way of business to receive or negotiate bets on any such race on such terms as aforesaid except with the authority of the occupier ; and in giving any authority under this subsection the occupier may do so on such terms, including terms as to payments to the occupier, as the occupier may think fit.

(3) Subsection (2) of section eleven of this Act shall apply for the purposes of this section as if it were incorporated in this section and as if—

- (a)** any reference therein to the right conferred on the Board by subsection (1) of that section were a reference to the right conferred on the occupier of the track by the last foregoing subsection ; and
- (b)** any other reference therein to the Board were a reference to the occupier of the track ; and
- (c)** for paragraphs (a) and (b) thereof there were substituted the following—

“ (a) carries on any form of pool betting business on any such race as aforesaid or by way of business holds himself out as willing to enter into any pool betting transaction on any such race ; or

(b) by way of business, receives or negotiates, or holds himself out as willing to receive or negotiate, any bet on any such race on such terms as are mentioned in paragraph (b) of subsection (2) of this section ”.

(4) In this section, the expressions “ dog race ” and “ licensed track ” have the same meanings respectively as in Part I of the Betting and Lotteries Act, 1934.

PART I
Appointment
of accountant
under Pool
Betting Act,
1954.

13. At the end of subsection (1) of section two of the Pool Betting Act, 1954, there shall be added the words:—

“ Provided that the local authority shall not appoint a person who is employed by the registered pool promoter in connection with his pool betting business ”.

Additional
rule concerning
prizes under
Pool Betting
Act, 1954.

14. At the end of paragraph (e) of subsection (1) of section three of the Pool Betting Act, 1954, there shall be added the words “ and being a percentage which is determined and notified to the accountant appointed under section two of this Act before that day ”.

PART II

GAMING

Repeal of
existing law
relating to
gaming.

15. The enactments specified in Part I of the Sixth Schedule to this Act (including any of those enactments as incorporated in, or adopted by or under, any local Act), being enactments relating wholly or mainly to gaming, unlawful games or gaming houses, are hereby repealed to the extent respectively specified in the third column of the said Part I; and, notwithstanding any rule of law, premises shall not be a common gaming-house by reason of the carrying on of gaming thereon.

General pro-
visions as to
gaming.

16.—(1) Subject to the provisions of this Act, any gaming shall be lawful if, but only if, it is conducted in accordance with the following conditions, that is to say—

(a) that either—

(i) the chances in the game are equally favourable to all the players; or

(ii) the gaming is so conducted that the chances therein are equally favourable to all the players; and

(b) that no money or money's worth which any of the players puts down as stakes, or pays by way of losses, or exchanges for tokens used in playing the game, is disposed of otherwise than by payment to a player as winnings; and

(c) that no other payment in money or money's worth is required for a person to take part in the gaming.

(2) If in any proceedings under this section evidence is adduced that gaming took place on any premises and either—

(a) that the game was, or was a variant of or of a similar nature to, a game which is capable of being played in accordance with the ordinary rules thereof in such a manner that the chances therein are not equally

PART II

favourable to all the players, and that ten or more persons were present at the gaming ; or

- (b) that a payment of money or money's worth was required in order to obtain access to the premises,

then, subject to subsection (7) of this section, it shall be held that the gaming was unlawful gaming unless it is proved that the gaming was conducted in accordance with the conditions set out in subsection (1) of this section.

(3) Subject to the provisions of this Act, no gaming shall take place at which any person under the age of eighteen years is included among the players, except where both the following conditions are satisfied, that is to say—

- (a) that the gaming takes place in a private dwelling-house or in the presence of a parent or guardian of that person ; and

- (b) that any such person taking part in the gaming does so with the permission, whether general or special, of a parent or guardian of that person.

(4) If any gaming takes place on any premises—

- (a) which is by virtue of subsection (1) of this section, or is held in pursuance of subsection (2) of this section to have been, unlawful gaming ; or

(b) which contravenes subsection (3) of this section, any person concerned in the organisation or management of the gaming, and any other person who, knowing or having reasonable cause to suspect that unlawful gaming or gaming in contravention of the said subsection (3) would take place on those premises—

- (i) allowed the premises to be used for the purposes of gaming ; or

- (ii) let the premises, or otherwise made the premises available, to any person by whom an offence in connection with the gaming has been committed,

shall be guilty of an offence ; and for the purposes of this subsection any person who took part in procuring the assembly of the players shall be deemed to have been concerned in the organisation of the gaming.

(5) Any person who is present at any gaming such as is mentioned in paragraph (a) or (b) of the last foregoing subsection for the purposes of taking part therein shall be liable on summary conviction to a fine not exceeding fifty pounds :

Provided that, for the purposes of any proceedings under this subsection in respect of gaming such as is mentioned in the said paragraph (a), paragraph (c) of subsection (1) of this section shall

PART II

be deemed to be omitted if the person charged proves that he was not required to make, or to undertake to make, any payment such as is mentioned in the said paragraph (c) and that he neither knew nor had reasonable cause to suspect that any other person was so required.

(6) For the purposes of the last foregoing subsection, proof that any person was present at any gaming shall be evidence that he was present for the purpose of taking part therein unless he proves that he was present neither for that purpose nor for any of the following purposes, that is to say, taking part in the management of the gaming, operating any instrument or other thing whatsoever used in connection with the gaming, or making bets with respect to the gaming.

(7) In any proceedings under this section, gaming shall be held to have been conducted in accordance with the condition set out in paragraph (c) of subsection (1) of this section if it is proved—

(a) that the gaming was carried on as an activity of a club ;
and

(b) that, apart from any annual subscription for membership of the club, the only other payment required for a person to take part in the gaming was of a fixed sum of money determined before the gaming began ;
and

(c) that no person took part in the gaming who was not either—

(i) a member of the club in pursuance of an application or nomination for membership made more than twenty-four hours before the gaming began ; or

(ii) a bona fide guest of such a member ; and

(d) that the club is so constituted and conducted, both as regards membership and otherwise, as not to be of a merely temporary character.

(8) In any proceedings in respect of a contravention of subsection (3) of this section in the case of any gaming, it shall be a defence to prove that the person charged neither knew nor had reasonable cause to suspect that any of the players was under the age of eighteen years.

(9) In the application of this section to Scotland—

(a) in subsection (2), for the words “evidence is adduced” there shall be substituted the words “it is proved” ;

(b) subsection (6) shall not apply, but, in any proceedings in Scotland under subsection (5), if any person is proved to have been present at the gaming to which the proceedings relate, that person shall be held to have been present for the purpose of taking part therein unless he

PART II

proves that he was present neither for that purpose nor for any of the following purposes, that is to say, taking part in the management of the gaming, operating any instrument or other thing whatsoever used in connection with the gaming, or making bets with respect to the gaming.

17.—(1) Section sixteen of this Act shall not apply to gaming by means of a gaming machine but, subject to the provisions of this Act, if any such gaming takes place on any premises to which, whether on payment or otherwise, the public have access or which are used wholly or mainly by persons under the age of eighteen years or, except in accordance with the conditions set out in subsection (2) of this section, on any other premises—

- (a) any person who knowingly allowed the premises to be used for the purposes of the gaming; and
- (b) any other person who, knowing or having reasonable cause to suspect that the premises would be used for such gaming—
 - (i) caused or allowed the machine to be placed on the premises; or
 - (ii) let the premises, or otherwise made the premises available, to any person by whom an offence in connection with the gaming was committed,

shall be guilty of an offence.

(2) The conditions referred to in the foregoing subsection are—

- (a) that not more than two gaming machines are made available for play in any one building or, where different parts of a building are occupied by two or more different persons, in the part or parts of the building occupied by any one of those persons; and
- (b) that the stake required to be hazarded in order to play the game once does not exceed sixpence; and
- (c) that all stakes hazarded are applied either in the payment of winnings to a player of the game or for purposes other than private gain.

(3) In this section—

- (a) the expression “gaming machine” means a machine for playing a game of chance, being a game which requires no action by any player other than the actuation or manipulation of the machine; and
- (b) the expression “building” includes the curtilage of the building.

18.—(1) Subject to the provisions of this Act, if any person takes part in gaming in any street or in any other place which, whether on payment or otherwise, the public have access, he shall be liable on summary conviction to a fine not exceeding fifty pounds.

PART II

(2) A constable may arrest without warrant anyone whom he finds in a street or in any such place as aforesaid and whom he suspects, with reasonable cause, to be committing an offence under this section.

(3) In this section—

- (a) the expression “street” includes any bridge, road, lane, footway, subway, square, court, alley or passage, whether a thoroughfare or not, which is for the time being open to the public and, in the application of this section to Scotland, includes also any common close or common stair; and
- (b) the doorways and entrances of premises abutting upon, and any ground adjoining and open to, a street shall be treated as forming part of the street.

Saving for
dominoes and
cribbage on
licensed
premises, etc.

19.—(1) Section eighteen of this Act shall not apply to the playing of dominoes or cribbage—

- (a) on premises in respect of which there is for the time being in force a justices’ on-licence granted under the Licensing Act, 1953, or a hotel certificate or public house certificate granted under the Licensing (Scotland) Act, 1959; or
- (b) on premises in any district specified in Part I of the Ninth Schedule to the said Act of 1953 or in Part I of the Eighth Schedule to the said Act of 1959 which are being used for the sale on behalf of the Secretary of State of intoxicating or, as the case may be, excisable liquor for consumption on those premises.

(2) The licensing justices for any licensing district within the meaning of the said Act of 1953, or the licensing court for any licensing area within the meaning of the said Act of 1959, may at any time, if in the case of any particular premises such as aforesaid situated within that district or area they think fit so to do, by order impose such requirements or restrictions with respect to the playing of the said games on any part of those premises to which the public have access as they consider necessary to secure—

- (a) that the games are not played on that part of the premises in such circumstances as to constitute an inducement to persons to resort thereto primarily for the purpose of taking part in gaming at those games; and
- (b) that any such gaming on that part of the premises does not take place for high stakes.

(3) The justices or court aforesaid may at any time by a further order vary or revoke any previous order made under this section.

(4) An order under this section with respect to any premises shall come into force upon notice thereof being given—

PART II

(a) in the case of premises such as are mentioned in paragraph (a) of subsection (1) of this section, to the person who is for the time being the holder of the licence or certificate aforesaid in respect of those premises ;

(b) in the case of premises such as are mentioned in paragraph (b) of that subsection, to the Secretary of State,

and the justices or court shall send a copy of the notice to the chief officer of police for the police area in which the premises are situated ; and, subject to any further order varying or revoking it, the order shall continue in force so long as the premises continue to be premises such as are mentioned in the said subsection (1).

(5) Section one hundred and sixty-six of the Licensing Act, 1953 (which relates to the application of that Act to the Isles of Scilly) shall have effect as if the reference therein to the functions of the licensing justices under Part VII of that Act included a reference to the functions of those justices under this section.

20. Where gaming is carried on at an entertainment promoted for raising money to be applied for purposes other than private gain, then, in relation to that gaming—

Saving for
entertainments
not held for
private gain.

(a) so much of section eighteen of this Act as relates to gaming in a place other than a street shall not apply ;
and

(b) section sixteen of this Act shall have effect—

(i) as if paragraph (b) of subsection (2) thereof were omitted ; and

(ii) as if for the condition set out in paragraph (c) of subsection (1) thereof there were substituted the conditions set out in subsection (1), and the provisions of subsections (4) and (5), of section four of the Small Lotteries and Gaming Act, 1956.

21.—(1) Nothing in section twenty-one of the Betting and Lotteries Act, 1934 (which declares all lotteries to be unlawful) shall make unlawful any gaming conducted in such circumstances that no offence under this Part of this Act is committed ; and in any proceedings instituted under subsection (1) of section twenty-two of the said Act of 1934 (which relates to offences in connection with lotteries) it shall be a defence to prove that the lottery to which the proceedings relate was also a game of chance and that at the time of the alleged offence the person charged believed, and had reasonable ground for believing, that it was being conducted as aforesaid.

Supplementary
provisions
with respect
to gaming.

(2) Notwithstanding any rule of law, for the purposes of any enactment relating to betting, the expression “bet” shall not include any bet or stake at any gaming conducted as aforesaid.

PART II

(3) Notwithstanding any rule of law—

(a) the making of bets by way of pool betting ; and

(b) participation in any lottery which satisfies the conditions set out in subsection (4) of this section,

shall not be held to be gaming.

(4) The conditions referred to in paragraph (b) of the last foregoing subsection are—

(a) that the lottery is a lottery declared by section twenty-three or twenty-four of the said Act of 1934 or by section one of the Small Lotteries and Gaming Act, 1956, not to be an unlawful lottery ; and

(b) that each winner of a prize is ascertained by reference to not more than three determining factors, each of those factors being either the result of a draw or other determination or the outcome of an event.

Local
authorities
not to
subsidise
premises for
gaming.

22. It is hereby declared that nothing contained in section one hundred and thirty-two of the Local Government Act, 1948, or in any local or private act shall be deemed to authorise any local authority to maintain or subsidise any premises wholly or mainly for the purpose of persons resorting thereto habitually for the purpose of taking part in gaming :

Provided that this section shall not apply where the gaming is by way only of amusements with prizes and the premises are premises in respect of which a permit for the provision thereon of such amusements has been granted, and is for the time being in force, under the Third Schedule to this Act.

PART III

AMUSEMENTS WITH PRIZES

Provision of
amusements
with prizes
at certain
non-comm-
ercial enter-
tainments.

23.—(1) The provisions of this section shall have effect for the purpose of permitting the provision at any entertainment to which section twenty-three of the Betting and Lotteries Act, 1934, applies of amusements with prizes ; and in subsection (3) of the said section twenty-three (which defines the entertainments to which that section applies as bazaars, sales of work, fêtes and other entertainments of a similar character, whether limited to one day or extending over two or more days) after the word “fêtes” there shall be inserted the words “dinner, dances, sporting or athletic events”.

(2) Nothing in any of the following provisions, that is to say, sections sixteen to eighteen of this Act and sections twenty-one

PART III

and twenty-two of the said Act of 1934, shall apply in relation to amusements with prizes provided as an incident of such an entertainment as aforesaid ; but, in relation to any such amusement to which any of the said provisions would apply but for this subsection, the conditions set out in the next following subsection shall be observed, and if either of those conditions is contravened every person concerned in the provision or conduct of that amusement shall be guilty of an offence unless he proves that the contravention occurred without his consent or connivance and that he exercised all due diligence to prevent it.

(3) The conditions referred to in the last foregoing subsection are—

(a) that the whole proceeds of the entertainment (including the proceeds of any amusements to which this subsection applies) after deducting—

(i) the expenses of the entertainment, including any expenses incurred in connection with any such amusements and the provision of prizes thereat ; and

(ii) any other amounts authorised to be deducted by paragraph (a) of subsection (2) of the said section twenty-three,

will be devoted to purposes other than private gain ; and

(b) that the opportunity to win prizes at amusements to which this subsection applies, or that opportunity together with facilities offered by virtue of the said section twenty-three for participating in a lottery or by virtue of section twenty of this Act for taking part in gaming, is not the only, or the only substantial, inducement to persons to attend the entertainment.

(4) In paragraph (d) of subsection (2) of the said section twenty-three (which makes provision corresponding to paragraph (b) of the last foregoing subsection), the reference to facilities offered for participating in lotteries shall be construed as including a reference both to such an opportunity as is mentioned in the said paragraph (b) and to facilities offered by virtue of section twenty of this Act for taking part in gaming.

24.—(1) The provisions of this section shall have effect for the purpose of permitting the provision of amusements with prizes—

Provision of
amusements
with prizes
at certain
commercial
entertainments.

(a) on any premises in respect of which a permit for the provision thereon of such amusements has been granted by the local authority, and is for the time being in force, under the Third Schedule to this Act ; and

(b) at any pleasure fair consisting wholly or mainly of amusements provided by travelling showmen which

PART III

is held on any day of a year on premises not previously used in that year on more than twenty-seven days for the holding of such a pleasure fair.

(2) Nothing in any of the following provisions, that is to say, sections sixteen to eighteen of this Act and sections twenty-one and twenty-two of the Betting and Lotteries Act, 1934, shall apply in relation to amusements with prizes provided on such premises as are mentioned in paragraph (a) or at such a pleasure fair as is mentioned in paragraph (b) of the foregoing subsection ; but, in relation to any such amusement to which any of the said provisions would apply but for this subsection, the conditions set out in subsection (3) of this section shall be observed, and if any of those conditions is contravened every person concerned in the provision or conduct of that amusement shall be guilty of an offence unless he proves that the contravention occurred without his consent or connivance and that he exercised all due diligence to prevent it.

(3) The conditions referred to in the last foregoing subsection are—

- (a) that the amount paid by any person for any one chance to win a prize does not exceed one shilling ;
- (b) that the aggregate amount taken by way of the sale of chances in any one determination of winners, if any, of prizes does not exceed fifty shillings, and that the sale of those chances and the declaration of the result take place on the same day and on the premises on which, and during the time when, the amusement is provided ;
- (c) that no money prize is distributed or offered which exceeds one shilling ;
- (d) that the winning of, or the purchase of a chance to win, a prize does not entitle any person, whether or not subject to a further payment by him, to any further opportunity to win money or money's worth by taking part in any amusement with prizes or in any gaming or lottery ;
- (e) in the case of such a pleasure fair as is mentioned in paragraph (b) of subsection (1) of this section, that the opportunity to win prizes at amusements to which this subsection applies is not the only, or the only substantial, inducement to persons to attend the fair.

(4) Where any amusement with prizes takes the form of a game played by means of a machine, being a game which is made playable by the insertion of a coin or coins into the machine, then, notwithstanding that, in addition to a money prize, a successful player receives the opportunity to play the game again without the insertion of another coin, the condition set out in paragraph

(d) of subsection (3) of this section shall not be deemed to be contravened if the aggregate amount which can be won by the player without inserting another coin does not exceed one shilling.

PART III

25.—(1) Nothing in sections sixteen to eighteen of this Act or in section twenty-one or twenty-two of the Betting and Lotteries Act, 1934, shall apply to a game played by means of a machine in accordance with the conditions set out in subsection (2) of this section. Amusement machines.

(2) The conditions referred to in the foregoing subsection are that—

- (a) the game is made playable by the insertion of a coin or coins into the machine by means of which it is played; and
- (b) a successful player neither receives nor is offered any benefit other than—
 - (i) the opportunity, afforded by the automatic action of the machine, to play the game again without the insertion of another coin; or
 - (ii) the delivery by the machine of a coin or coins of a value or aggregate value not exceeding that required in order to play the game once.

PART IV

MISCELLANEOUS AND GENERAL

26.—(1) In the following provisions that is to say, section forty-four of the Metropolitan Police Act, 1839, section twenty-eight of the City of London Police Act, 1839, section thirty-two of the Refreshment Houses Act, 1860, and subsection (1) of section one hundred and forty-one of the Licensing Act, 1953 (which prohibit gaming in refreshment houses or on licensed premises), and in any condition contained in any certificate granted under the Licensing (Scotland) Act, 1959, any reference to gaming or unlawful games shall be construed as a reference to the playing of any game in such circumstances that an offence under Part II of this Act is committed or a requirement or restriction for the time being in force under section nineteen of this Act is contravened. Playing of games on certain premises.

(2) So much of section thirteen of the Gaming Act, 1845, as prevents a billiard room on premises licensed under the Licensing Act, 1953, from being used for other games or purposes during times when the playing therein of billiards, bagatelle and similar games is prohibited, that is to say, the words “and every billiard room in every house specified in any victualler’s licence”, shall cease to have effect.

PART IV
Enforcement
and penalties.

27.—(1) If a justice of the peace is satisfied on information on oath that there is reasonable ground for suspecting that an offence under this Act is being, has been or is about to be committed on any premises, he may issue a warrant in writing authorising any constable to enter those premises, if necessary by force, at any time within fourteen days from the time of the issue of the warrant and search them; and any constable who enters the premises under the authority of the warrant may—

- (a) seize and remove any document, money or valuable thing, instrument or other thing whatsoever found on the premises which he has reasonable cause to believe may be required as evidence for the purposes of proceedings in respect of any such offence; and
- (b) arrest and search any person found on the premises whom he has reasonable cause to believe to be committing or to have committed any such offence.

In its application to Scotland, this subsection shall have effect as if for the reference to a justice of the peace there were substituted a reference to the sheriff or a magistrate or justice of the peace having jurisdiction in the place where the premises are situated.

(2) A person guilty of an offence under any of the following provisions of this Act, that is to say, subsection (2) of section one, section two, or subsection (4) of section sixteen, shall be liable to the penalties provided by subsection (1) of section thirty of the Betting and Lotteries Act, 1934, for the offences therein mentioned, that is to say—

- (a) on summary conviction, to a fine not exceeding one hundred pounds or, in the case of a second or any subsequent conviction for an offence under the same provision, to imprisonment for a term not exceeding three months or to a fine not exceeding two hundred pounds or to both; or
- (b) on conviction on indictment, to a fine not exceeding five hundred pounds or, in the case of a second or any subsequent conviction for an offence under the same provision, to imprisonment for a term not exceeding one year or to a fine not exceeding seven hundred and fifty pounds or to both.

(3) A person guilty of an offence under any provision of this Act not mentioned in the last foregoing subsection, being a provision which does not provide a special penalty, shall be liable to the penalties provided by subsection (2) of the said section thirty for the offences to which that subsection applies, that is to say—

- (a) on summary conviction, to a fine not exceeding fifty pounds or, in the case of a second or any subsequent

PART IV

conviction for an offence under the same provision, to imprisonment for a term not exceeding two months or to a fine not exceeding one hundred pounds or to both; or

- (b) on conviction on indictment, to a fine not exceeding three hundred pounds or, in the case of a second or any subsequent conviction for an offence under the same provision, to imprisonment for a term not exceeding six months or to a fine not exceeding five hundred pounds or to both.

(4) Where an offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

In this subsection, the expression "director", in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

(5) The court by or before which any person is convicted of any offence under this Act may order anything produced to the court and shown to the satisfaction of the court to relate to the offence to be forfeited and either destroyed or dealt with in such other manner as the court may order.

28.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say— Interpretation.

"appointed day" means such day as the Secretary of State may by order made by statutory instrument appoint, and different days may be appointed for England and Scotland respectively and for different purposes of this Act;

"approved horse racecourse" means an approved racecourse within the meaning of the Racecourse Betting Act, 1928;

"betting agency permit" has the meaning assigned by subsection (2) of section four of this Act;

"betting office licence" has the meaning assigned by subsection (1) of section four of this Act;

PART IV

“betting transaction” includes the collection or payment of winnings on a bet and any transaction in which one or more of the parties is acting as a bookmaker ;

“the Board” means the Racecourse Betting Control Board ;

“bookmaker” means any person other than the Board who, whether on his own account or as servant or agent to any other person, carries on, whether occasionally or regularly, the business of receiving or negotiating bets or conducting pool betting operations, or who by way of business in any manner holds himself out, or permits himself to be held out, as a person who receives or negotiates bets or conducts such operations, so, however, that a person shall not be deemed to be a bookmaker by reason only of the fact—

(a) that he carries on, or is employed in, sponsored pool betting business ; or

(b) that he operates, or is employed in operating, a totalisator ;

and the expression “bookmaking” shall be construed accordingly ;

“bookmaker’s permit” has the meaning assigned by subsection (1) of section two of this Act ;

“contravention”, in relation to any requirement, includes a failure to comply with that requirement, and “contravene” shall be construed accordingly ;

“game of chance” includes a game of chance and skill combined and a pretended game of chance or of chance and skill combined, but does not include any athletic game or sport ;

“gaming” means the playing of a game of chance for winnings in money or money’s worth ;

“licensed betting office” means premises in respect of which a betting office licence is for the time being in force ;

“licensee”, in relation to a licensed betting office, means the holder of the betting office licence for the time being in force in respect of that office ;

“money” includes a cheque, banknote, postal order or money order ;

“player”, in relation to a game of chance, includes any person taking part in the game against whom other persons taking part in the game stake, play or bet ;

“pool betting” has the same meaning as for the purposes of section six of the Finance (No. 2) Act, 1947 ;

PART IV

- "pool betting business" means business involving the receiving or negotiating of bets made by way of pool betting ;
- "premises" includes any place and, in sections one, sixteen and seventeen of this Act, includes any vessel ;
- "prescribed" means prescribed by regulations made by the Secretary of State by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, and any such regulations may make different provision for different circumstances ;
- "recognised horse race" means a horse race run on an approved horse racecourse on a day when horse races but no other races take place on that racecourse ;
- "sponsored pool betting" means pool betting by means of facilities provided by the Board or provided on an approved horse racecourse with the authority of the Board by the persons having the management of that racecourse ;
- "totalisator" means the contrivance for betting known as the totalisator or pari mutuel, or any other machine or instrument of betting of a like nature, whether mechanically operated or not ;
- "winnings" includes winnings of any kind and any reference to the payment of winnings shall be construed accordingly.

(2) The powers to make an act of sederunt conferred on the Court of Session by paragraphs 21 and 25 of the First Schedule (including the said paragraph 25 as applied by sub-paragraph (2) of paragraph 29 of that Schedule) and paragraph 8 of the Third Schedule to this Act shall be exercisable by statutory instrument, and the Statutory Instruments Act, 1946, shall apply to any such instrument in like manner as if those powers had been conferred on a Minister of the Crown.

(3) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including any enactment contained in this Act.

29.—(1) The Fourth Schedule to this Act shall have effect for the purpose of making certain provision consequential upon the provisions of this Act. Amendments and repeals in other Acts.

(2) The provisions of the Fifth Schedule to this Act shall have effect with a view to securing consistency and uniformity in, and facilitating the consolidation of, the enactments relating to betting, gaming and lotteries.

PART IV

(3) The enactments specified in Part II of the Sixth Schedule to this Act (including any of those enactments as incorporated in, or adopted by or under, any local Act) are hereby repealed to the extent respectively specified in the third column of the said Part II.

(4) Where any provision contained in any local Act passed before this Act appears to the Secretary of State to have been superseded by, or to be inconsistent with, an enactment contained in any of the following, that is to say, this Act, section one of the Betting and Loans (Infants) Act, 1892, the Street Betting Act, 1906, the Racecourse Betting Act, 1928, the Betting and Lotteries Act, 1934, the Pool Betting Act, 1954, and the Small Lotteries and Gaming Act, 1956, the Secretary of State may by order made by statutory instrument, a draft of which shall be laid before Parliament, specify that provision for the purposes of this subsection ; and, without prejudice to the operation in the meantime of any rule of law relating to the effect on any such provision of any such enactment, any provision so specified is hereby repealed as from the date of the making of the order.

Expenses

30. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable out of moneys so provided under any other enactment.

**Short title,
extent and
commence-
ment.**

31.—(1) This Act may be cited as the Betting and Gaming Act, 1960.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into force on the appointed day.

Sections 2, 4,
10, 28 (2).

SCHEDULES**FIRST SCHEDULE****BOOKMAKER'S PERMITS, BETTING AGENCY PERMITS AND BETTING
OFFICE LICENCES***Introductory*

1. The authority responsible for the grant or renewal of bookmaker's permits, betting agency permits and betting office licences shall be—

- (a) in any petty sessions area in England, a committee constituted in the prescribed manner of not less than five nor more than fifteen of the justices acting for that area, who may sit in two or more divisions, the quorum at any meeting of that committee or a division thereof being three ;

- (b) in any licensing area within the meaning of the Licensing (Scotland) Act, 1959, the licensing court constituted for that area under section one or two of that Act.

1ST SCH.

2. In this Schedule, the following expressions have the following meanings respectively, that is to say—

“appropriate authority” means such a committee or court as is mentioned in paragraph 1 of this Schedule and, in relation to a bookmaker’s permit or betting agency permit or in relation to an application for the grant or renewal of a betting office licence, means, subject to paragraph 11 of this Schedule, the committee or court such as aforesaid for the petty sessions area or licensing area in which the relevant premises are, or are to be, situated;

“appropriate local authority” means—

(a) in England, the local authority (being the council of a county borough, metropolitan borough or county district or the Common Council of the City of London) within whose area the relevant premises are, or are to be, situated;

(b) in Scotland, where the relevant premises are, or are to be, situated in a burgh, the council of that burgh, and in any other case the council of the county, and the council of the district, within which the relevant premises are, or are to be, situated;

“appropriate officer of police” means the chief officer of police for the police area in which the relevant premises are, or are to be, situated;

“clerk to the appropriate authority”, where the authority is a committee of the justices acting for a petty sessions area, means the clerk to those justices or, if there are two or more clerks to those justices—

(a) such one of those clerks as the magistrates’ courts committee having power over the appointment of clerks to justices for that area may direct; or

(b) in default of any such direction, any of those clerks;

“relevant premises” means—

(a) in relation to a bookmaker’s permit or betting agency permit, the premises at which for the time being the applicant for or holder of the permit has his office or, if he has more than one office, his principal office or, if he is a company, his registered office or, if he has no office, his usual place of residence;

(b) in relation to an application for the grant or renewal of a betting office licence, the premises in respect of which the application is made.

1ST SCH.

Applications for grant of permit or licence

3. Each appropriate authority shall for each year fix a day in each of the months of—

(a) January, April, July and October if the authority is in England ; or

(b) January, March, June and October if the authority is in Scotland,

as a day on which, subject to paragraphs 7 and 8 of this Schedule, they will hold a meeting for the purpose of considering any application for the grant of a bookmaker's permit, betting agency permit or betting office licence then awaiting consideration.

4. In addition to any meeting on a day fixed in pursuance of the last foregoing paragraph, an appropriate authority may hold a meeting on any other day for the purpose of considering such applications as aforesaid.

5. Any such application as aforesaid may be made at any time and shall be made to the clerk to the appropriate authority in such form and manner, and shall contain such particulars, and, if the application is for a permit, give such references, as may be prescribed ; and, not later than seven days after the date when the application is made, the applicant shall send a copy of the application to the appropriate officer of police and, in the case of an application for the grant of a betting office licence, to the appropriate local authority ; and if the applicant knowingly makes any false statement in any such application or copy thereof he shall be liable on summary conviction to a fine not exceeding fifty pounds.

6. Not later than fourteen days after the making of any such application as aforesaid to the appropriate authority, the applicant shall cause to be published by means of an advertisement in a newspaper circulating in the authority's area a notice of the making of the application which shall also state that any person who desires to object to the grant of the permit or licence should send to the clerk to the authority, before such date not earlier than fourteen days after the publication of the advertisement as may be specified in the notice, two copies of a brief statement in writing of the grounds of his objection ; and, in the case of an application for the grant of a betting office licence in respect of any premises, the applicant shall also cause a like notice to be posted up outside the entrance, or on the site of the proposed entrance, to the premises not later than fourteen days before the date specified as aforesaid and take such steps as he reasonably can to keep that notice so posted until that date.

7. Not later than seven days after the publication of the newspaper containing the advertisement of any such application as aforesaid required by the last foregoing paragraph, the applicant shall send a copy of that newspaper to the clerk to the appropriate authority, and the authority shall not consider the application earlier than fourteen days after the date specified in the advertisement ; and, not earlier than the said date and not less than seven

days before the date appointed for the consideration of the application, the clerk to the authority shall send notice in writing of the date, time and place of the meeting of the authority at which the application will be considered—

- (a) to the applicant ;
- (b) to the appropriate officer of police ; and
- (c) if the clerk has received from any person an objection in writing which has not been withdrawn and the address of that person is known to the clerk, to that person,

and also cause notice of that meeting to be displayed at the place where the meeting is to be held in a position where the notice may conveniently be read by members of the public ; and in sending such a notice to the applicant the clerk shall include therewith a copy of any objection to the grant of the permit or licence which has been received by the clerk from the appropriate officer of police, the appropriate local authority or any other person.

8. The appropriate authority shall not consider any application for the grant of a betting office licence before the appointed day and shall not grant any such application made before that day until they have considered all such applications so made ; and for the period of one year commencing with that day the appropriate authority shall, in granting betting office licences, give preference over any other applicant to the Board and to any person who satisfies the authority—

- (a) that he is carrying on, or proposes to carry on, business on his own account as a bookmaker wholly or mainly within an area comprised in or adjoining the authority's area ; and
- (b) that he or a predecessor in title to that business was so carrying on that business during the whole or a substantial part of the period of twelve months ending with the second day of November, nineteen hundred and fifty-nine.

Applications for renewal of permit or licence

9. Each appropriate authority, in each year in which any application for the renewal of a bookmaker's permit, betting agency permit or betting office licence, other than an application to which sub-paragraph (b) of paragraph 11 of this Schedule applies, falls to be made to the authority, shall in the month of February (if the authority is in England) or January (if the authority is in Scotland) give in writing to the holder of that permit or licence, and cause to be published by means of an advertisement in a newspaper circulating in their area, notice of a day in April (if the authority is in England) or March (if the authority is in Scotland) on which they will hold a meeting for the purpose of considering such applications, and that notice shall include the time and place appointed for the meeting and shall state—

- (a) in the case of the notice given to the holder of any permit or licence, that any such application must be received by

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the clerk to the authority before a specified date, being a date not earlier than fourteen days after both the giving of the notice in writing and the publication of the advertisement aforesaid ;

- (b) in the case of the notice given by advertisement, that any person who desires to object to the renewal by the authority of any particular permit or licence should send to the clerk to the authority before the same date two copies of a brief statement in writing of the grounds of his objection.

10. Any application for the renewal of such a permit or licence as aforesaid, other than an application to which sub-paragraph (b) of paragraph 11 of this Schedule applies, shall be made to the clerk to the appropriate authority before the date specified for the purpose in the notice given in pursuance of the last foregoing paragraph, and shall be in such form and contain such particulars as may be prescribed ; and, not earlier than that date nor later than seven days before the day in April or, as the case may be, March appointed by the said notice for the consideration of such applications, the clerk to the authority—

- (a) if he has received from any person an objection in writing to the renewal of a particular permit or licence (being an objection which has not been withdrawn) and the address of that person is known to the clerk, shall send to that person in writing a notification as to whether or not an application for the renewal of that permit or licence has been made ;
- (b) shall send to the person by whom any application for the renewal of a permit or licence has been duly made a copy of any objection to the renewal which he has received from the appropriate officer of police, the appropriate local authority or any other person and which has not been withdrawn.

11. Where in any year, by reason of a change in the office or usual place of residence of the holder of a bookmaker's permit or betting agency permit, an application for the renewal of that permit falls, or would but for this paragraph fall, to be made to an authority other than the authority by which the permit was last either granted or renewed, then—

- (a) unless the change takes place before the first day of February or, where the first-mentioned authority is in Scotland, January in that year, any application for the renewal of the permit shall be made to and considered by the authority by which the permit was last either granted or renewed ;
- (b) if the change takes place before the said first day of February or, as the case may be, January, paragraphs 5 to 7 of this Schedule shall apply to an application to the first-mentioned authority for the renewal of the permit as if it were an application for the grant thereof.

Proceedings before appropriate authority

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12. On any application for the grant or renewal of a bookmaker's permit, betting agency permit or betting office licence, the appropriate authority may grant or renew the permit or licence without hearing the applicant if no objection to the grant or renewal has been made by any person or if every such objection has been withdrawn before the beginning of the meeting of the authority at which the authority considers the application ; but, save as aforesaid, at any such meeting any of the following persons, that is to say—

- (a) the applicant ;
- (b) any person from whom an objection in writing which has not been withdrawn was received by the clerk to the authority before the day on which he sent out the documents referred to in paragraph 7 or, as the case may be, paragraph 10 of this Schedule ; and
- (c) the person making any other objection which the authority has decided under paragraph 13 of this Schedule that they will hear,

shall be entitled to be heard either in person or by counsel or a solicitor ; and the authority shall also hear any representations made otherwise than by way of objection by, or by any person authorised in that behalf by, the appropriate officer of police.

13. Where in the case of an application for the grant or renewal of any such permit or licence as aforesaid an objection to the grant or renewal is received or made on or after the day referred to in sub-paragraph (b) of paragraph 12 of this Schedule, the authority may refuse to entertain the objection and, unless the applicant requests otherwise, shall not hear it until the objector has given to the clerk and to the applicant, and the applicant has had time to consider, a brief statement in writing of the grounds of his objection.

14. An appropriate authority may from time to time adjourn the consideration of any application for the grant or renewal of such a permit or licence as aforesaid, whether for the purposes of paragraph 13 of this Schedule or for any other purpose.

15. On the consideration of any application for the grant or renewal of any such permit or licence as aforesaid, the appropriate authority may take evidence on oath and may make such order as they think fit for the payment of costs or, in Scotland, expenses by or to the applicant to or by any person who made an objection to the grant or renewal which was not withdrawn before the day referred to in sub-paragraph (b) of paragraph 12 of this Schedule ; and any costs ordered by an authority in England to be paid under this paragraph shall be recoverable summarily as a civil debt.

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*Grounds for refusal to grant or renew bookmaker's or betting
agency permit*

16. The appropriate authority shall refuse any application for the grant or renewal of a bookmaker's permit or betting agency permit if it appears that the applicant—

- (a) not being a body corporate, is under twenty-one years of age ; or
- (b) is for the time being disqualified under subsection (3) of section eight of this Act ; or
- (c) not being a body corporate, is not resident in Great Britain or was not so resident throughout the six months immediately preceding the date when the application was made ; or
- (d) being a body corporate, is not incorporated in Great Britain ; or
- (e) has within the immediately preceding twelve months been refused the grant or renewal—
 - (i) of a bookmaker's permit under sub-paragraph (a) of paragraph 17 of this Schedule ; or
 - (ii) of a betting agency permit under sub-paragraph (b) of paragraph 18 of this Schedule ; or
- (f) has been the holder of a bookmaker's permit which has been cancelled within the immediately preceding twelve months under paragraph 28 of this Schedule.

17. In the case of an application for the grant or renewal of a bookmaker's permit, and subject to paragraph 19 of this Schedule, the appropriate authority may refuse the application if—

- (a) they are not satisfied that the applicant is, or satisfactory evidence is produced that the applicant is not, a fit and proper person to be the holder of a bookmaker's permit ; or
- (b) the authority are satisfied that, if the permit were to be granted or renewed, the business to which it relates would be managed by, or carried on for the benefit of, a person other than the applicant, being a person who would himself be refused the grant or renewal of such a permit either under paragraph 16 of this Schedule or under sub-paragraph (a) of this paragraph.

18. In the case of an application for the grant or renewal of a betting agency permit, the appropriate authority—

- (a) shall refuse the application unless the authority are satisfied that the applicant is for the time being accredited as mentioned in paragraph (c) of subsection (2) of section four of this Act ;
- (b) subject to paragraph 19 of this Schedule, may refuse the application if they are not satisfied that the applicant is, or satisfactory evidence is produced that the applicant is not, a fit and proper person to hold a betting office licence.

19. For the purposes of paragraph 17 or 18 of this Schedule, the appropriate authority shall disregard—

- (a) any conviction for an offence under the Betting Act, 1853, or under section three hundred and ninety-three or four hundred and seven of the Burgh Police (Scotland) Act, 1892, section fifty-one of the Burgh Police (Scotland) Act, 1903, or any corresponding provision of any local Act ;
- (b) any conviction for an offence under the Street Betting Act, 1906, the penalty for which does not fall to be determined under section six of this Act ; and
- (c) any conviction for an offence under subsection (2) of section one of this Act committed before the day appointed for the purposes of the said section six,

and, without prejudice to their power under paragraph 14 of this Schedule to adjourn consideration of the application, shall also disregard—

- (i) any proceedings for such an offence as is mentioned in subsection (1) of section eight of this Act which have been commenced but not yet determined ; and
- (ii) any cancellation of a permit under the said subsection (1) or under paragraph 28 of this Schedule which has not yet taken effect.

Grounds for refusal to grant or renew betting office licence

20.—(1) In the case of an application for the grant or renewal of a betting office licence in respect of any premises, the appropriate authority—

- (a) shall refuse the application if they are not satisfied—

- (i) in the case of an applicant other than the Board, that on the date with effect from which the licence would come into force, or, as the case may be, would be continued in force, the applicant will be the holder either of a bookmaker's permit or of a betting agency permit ; and

- (ii) that the premises are or will be enclosed ; and

- (iii) that there are or will be means of access between the premises and a street otherwise than through other premises used for the effecting with persons resorting to those other premises of transactions other than betting transactions ;

- (b) may refuse the application on the ground—

- (i) subject to sub-paragraph (2) of this paragraph, that, having regard to the lay-out, character, condition or location of the premises, they are not suitable for use as a licensed betting office ; or

- (ii) that the grant or renewal would be inexpedient having regard to the demand for the time being in the locality for the facilities afforded by licensed betting offices and to the number of such offices for the time being available to meet that demand ; or

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(iii) that the premises have not been properly conducted under the licence.

(2) In the case of an application for the grant of a betting office licence in respect of any premises made by the Board or by any such person as is mentioned in paragraph 8 of this Schedule, being an application made before the expiration of the period of one year beginning with the day appointed for the purposes of the said paragraph 8, the appropriate authority shall not refuse that application on any ground specified in sub-paragraph (i) of paragraph (b) of the foregoing sub-paragraph if they are satisfied that, if the licence is granted, every such ground for a refusal of that application will have ceased to exist before the licence falls to be renewed.

Grant or renewal of permit or licence

21.—(1) Save as provided by paragraphs 16 to 20 of this Schedule, the appropriate authority shall not refuse any application for the grant or renewal of a bookmaker's permit, betting agency permit or betting office licence made, so far as lies within the control of the applicant, in accordance with the provisions of this Act, but shall grant or renew the permit or licence on payment by the applicant to the clerk to the authority of a fee of—

- (a) in the case of the grant of a bookmaker's permit, one hundred pounds ;
- (b) in the case of the grant of a betting agency permit, five pounds ;
- (c) in the case of the renewal of a bookmaker's permit or betting agency permit or the grant or renewal of a betting office licence, one pound ;

and if the authority refuse any such application they shall state the grounds of their refusal.

(2) The clerk to any appropriate authority in Scotland shall pay over all fees received by him under this paragraph to the local authority liable under section twenty-one of the Licensing (Scotland) Act, 1959, to defray the expenses of that appropriate authority ; and that local authority shall pay to that clerk, in respect of anything done by him under this Act, such fees as the Court of Session may by act of sederunt prescribe.

Appeals against refusals in England

22.—(1) Where an appropriate authority in England refuse an application for the grant or renewal of a bookmaker's permit, betting agency permit or betting office licence, they shall forthwith notify the applicant of the refusal, and within fourteen days of being so notified the applicant may by notice to the clerk to the authority appeal against the refusal to a court of quarter sessions having jurisdiction in the authority's area.

(2) As soon as practicable after receiving notice of appeal against the refusal, the clerk to the authority shall send the notice to the clerk of the peace together with a statement of the decision from which the appeal is brought and of the name and last known residence or place of business of the appellant and of any person who opposed the application before the authority.

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(3) On receipt of the notice of appeal, the clerk of the peace shall enter the appeal and give in writing not less than seven days notice to the appellant, to the appropriate officer of police and to any person who opposed the application before the authority and, if the appeal relates to a betting office licence, to the authority, of the date, time and place appointed for the hearing of the appeal.

(4) The court of quarter sessions may by its order either—

(a) confirm the refusal ; or

(b) on payment by the appellant to the clerk of the peace for transmission to the clerk to the appropriate authority of the appropriate fee under paragraph 21 of this Schedule, grant or renew the permit or licence in the same way as the appropriate authority could have done ;

and the judgment of the court of quarter sessions on the appeal shall be final.

(5) A justice shall not act in the hearing or determination of an appeal under this paragraph from any decision in which he took part.

(6) Sections seven and eight of the Summary Jurisdiction (Appeals) Act, 1933 (which prescribe the courts for the hearing of certain appeals to quarter sessions) shall apply to an appeal under this paragraph as they apply in relation to an appeal from a magistrates' court.

(7) For the purposes of paragraphs 11, 34 and 35 of this Schedule, the grant or renewal of a permit or licence by a court of quarter sessions under this paragraph shall be treated as if it were a grant or renewal by the appropriate authority which refused it.

23. On determining any appeal under paragraph 22 of this Schedule, or on being satisfied that the appellant, after giving notice of such an appeal, has failed to prosecute it, the court of quarter sessions may make such order as it thinks fit for the payment of costs by or to the appellant or any person who opposed the application before the appropriate authority or, if the appeal relates to a betting office licence, the appropriate authority to or by any other of those persons, and any costs ordered to be paid under this paragraph shall be recoverable summarily as a civil debt.

24.—(1) Where, in the case of an appeal under paragraph 22 of this Schedule with respect to a betting office licence, the court of quarter sessions—

(a) has allowed the appeal ; or

(b) has awarded the appropriate authority any costs under paragraph 23 of this Schedule and is satisfied that the appropriate authority cannot recover those costs,

the court shall order payment out of local funds of such sums as appear to the court sufficient to indemnify the appropriate authority from all costs and charges whatever to which they have been put in consequence of the appellant's having served notice of appeal.

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(2) Costs payable out of local funds under this paragraph shall be paid—

(a) if the appropriate authority's area is a borough having a separate court of quarter sessions, out of the general rate fund of the borough ;

(b) in any other case, out of the county fund of the county in which the appropriate authority's area is situated.

(3) Subsection (1) of section eight and subsection (1) of section eleven of the Costs in Criminal Cases Act, 1952 (which make provision for payment out of local funds of costs ordered to be paid under that Act) shall apply to costs ordered to be paid under this paragraph as if any reference in those subsections to a county borough were a reference to a borough having a separate court of quarter sessions.

(4) An order of a court of quarter sessions under this paragraph may be made either at the sessions at which the appeal is heard, or at which it would have been heard if the appeal had been prosecuted, or at the next following sessions ; and the costs may be taxed either in or out of sessions.

Appeals against refusals in Scotland

25.—(1) Where an appropriate authority in Scotland refuse any application for the grant or renewal of a bookmaker's permit, betting agency permit or betting office licence, the authority shall forthwith notify the applicant of the refusal and he may appeal, within such time, and in accordance with such rules, as may be prescribed by the Court of Session by act of sederunt, to the sheriff having jurisdiction in the authority's area.

(2) On any such appeal the sheriff may either—

(a) confirm the refusal ; or

(b) on payment by the appellant to the sheriff clerk for transmission to the clerk to the appropriate authority of the appropriate fee under paragraph 21 of this Schedule, grant or renew the permit or licence in the same way as the appropriate authority could have done ;

and the decision of the sheriff on any such appeal shall be final and may include such order as to the expenses of the appeal as he thinks proper.

(3) For the purposes of paragraphs 11, 34 and 35 of this Schedule, the grant or renewal of a permit or licence by the sheriff under this paragraph shall be treated as if it were a grant or renewal by the appropriate authority which refused it.

Notification of change in directors during currency of bookmaker's permit

26. If, where the holder of a bookmaker's permit is a body corporate, any change occurs in the persons who are directors thereof or in accordance with whose directions or instructions the directors thereof are accustomed to act, the holder of the permit shall as soon as reasonably practicable after the occurrence of the

change give particulars thereof in writing to the clerk to the appropriate authority and to the appropriate officer of police ; and if the holder of the permit fails to comply with this paragraph he shall be liable on summary conviction to a fine not exceeding ten pounds.

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Cancellation of bookmaker's permit by appropriate authority

27. If in the case of any bookmaker's permit an application is made at any time to the clerk to the appropriate authority by any person in the prescribed form and manner requesting that the permit be forfeited and cancelled and accompanied by two copies of a statement of the grounds on which the application is made, the clerk to the authority shall submit the application to any one member of the authority who, after considering the statement accompanying the application—

(a) if he is of opinion—

(i) that further consideration of the matters referred to in that statement is unnecessary or inexpedient before the renewal of the permit falls to be considered ; or

(ii) that the authority would be required by virtue of sub-paragraph (3) of paragraph 28 of this Schedule to refuse the application,

shall cause notice in writing to be given to the applicant that the application is refused without prejudice to the raising of the same matters by way of objection in accordance with the provisions of this Schedule to a renewal of the permit ;

(b) unless he is of such opinion as aforesaid, shall refer the application to the appropriate authority.

28.—(1) Where an application for the cancellation of a permit is referred to the appropriate authority under the last foregoing paragraph, the clerk to the authority shall, unless the application has been withdrawn, give to the applicant, to the holder of the permit and to the appropriate officer of police not less than twenty-one days notice in writing of the date, time and place appointed for the consideration of the application by the authority, and shall send to the holder of the permit together with that notice a copy of the applicant's statement of the grounds on which the application is made.

(2) Subject to the next following sub-paragraph, at any meeting of the appropriate authority to consider the application, the applicant and the holder of the permit shall be entitled to be heard either in person or by counsel or a solicitor ; and where the applicant is a person other than the appropriate officer of police the authority shall also hear any representations made by, or by any person authorised in that behalf by, that officer ; and paragraphs 14 and 15 of this Schedule shall apply in relation to the application as they apply in relation to an application for the renewal of a permit, subject to the following modifications of the said paragraph 15, that is to say—

(a) as if the reference therein to the applicant for renewal were a reference to the holder of the permit ; and

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(b) as if the reference therein to any person who made an objection as mentioned in that paragraph were a reference to the person by whom the application under paragraph 27 of this Schedule was made.

(3) The appropriate authority shall refuse the application if they are satisfied that it is made on grounds which—

(a) have been or ought properly to have been raised previously by way of objection either when the permit was granted or on an occasion when it has been renewed ; or

(b) are or have been the subject matter of proceedings for such an offence as is mentioned in subsection (1) of section eight of this Act.

(4) The appropriate authority shall not cancel the permit unless—

(a) satisfactory evidence is produced that the holder is no longer a fit and proper person to hold such a permit ; or

(b) the authority are satisfied that the business to which it relates is being managed by, or carried on for the benefit of, a person other than the holder, being a person who would himself be refused the grant of such a permit either under paragraph 16 or under sub-paragraph (a) of paragraph 17 of this Schedule :

Provided that for the purposes of this sub-paragraph the authority shall disregard any conviction such as is mentioned in paragraph 19 of this Schedule.

(5) If the appropriate authority decide not to cancel the permit, they shall cause notice in writing to be given to the applicant that the application is refused without prejudice to the raising of the same matters by way of objection in accordance with the provisions of this Schedule to a renewal of the permit.

(6) If the appropriate authority decide to forfeit and cancel the permit, the forfeiture and cancellation shall not take effect—

(a) until the expiration of the time within which notice of an appeal under the next following paragraph may be given ; nor

(b) if such notice is duly given, until the determination or abandonment of the appeal.

29.—(1) Where the appropriate authority decide to forfeit and cancel a bookmaker's permit on an application under paragraph 27 of this Schedule, the holder of the permit may appeal against that decision to a court of quarter sessions (or in Scotland the sheriff) having jurisdiction in the authority's area, whose decision on the appeal shall be final.

(2) Paragraphs 22 (except sub-paragraphs (4) and (7) thereof), and 23 (or, as the case may be, sub-paragraph (1) of paragraph 25) of this Schedule shall apply for the purposes of an appeal under this paragraph against the forfeiture and cancellation of a bookmaker's permit as they apply for the purposes of an appeal against the refusal of an application for the renewal of such a permit subject to the following modifications, that is to say—

- (a) as if any reference therein to the applicant for renewal were a reference to the holder of the permit ; and
- (b) as if any reference therein to a person who opposed the application before the appropriate authority were a reference to the person by whom the application under paragraph 27 of this Schedule was made ;

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and, in the case of an appeal to the sheriff under this paragraph, the sheriff may make such order as to the expenses of the appeal as he thinks proper.

Duration of permit or licence

30. A bookmaker's permit, betting agency permit or betting office licence shall be in the prescribed form and shall show the date with effect from which it is to be, or, as the case may be, to be continued, in force and, subject to paragraphs 31 to 34 of this Schedule, shall, unless renewed or, as the case may be, further renewed, cease to be in force at the end of the thirty-first day of May falling not less than three nor more than fifteen months after the date so shown, and shall not be transferable :

Provided that, in relation to any permit or licence granted before the expiration of the period of six months beginning with the date of the coming into force of the provisions of this Act relating to permits or licences of that description, this paragraph shall have effect as if for the words " not less than three nor more than fifteen months " there were substituted the words " not less than six nor more than eighteen months ".

31. Where application for the renewal of such a permit or licence as aforesaid has been made, so far as lies within the control of the applicant, in accordance with the provisions of this Act, the permit or licence shall not cease to be in force by virtue of paragraph 30 of this Schedule before the appropriate authority make their determination on the application.

32. Where the appropriate authority refuse to renew any such permit or licence as aforesaid, the permit or licence shall not cease to be in force by virtue of paragraph 30 of this Schedule before the expiration of the time within which notice of an appeal under paragraph 22 or, as the case may be, paragraph 25 of this Schedule may be given nor, if such notice is duly given, before the determination or abandonment of the appeal.

33. A betting office licence held by the holder of a bookmaker's permit or betting agency permit shall cease to be in force upon that permit ceasing to be in force, whether by virtue of paragraph 30 of this Schedule or by virtue of its cancellation under subsection (1) of section eight of this Act or under paragraph 28 of this Schedule.

34. In the event of the death of the holder of such a permit or licence as aforesaid, then during the period of six months commencing with the death the permit or licence shall not cease to be in force by virtue of paragraph 30 of this Schedule and, except for the purposes of a renewal of that permit or licence, his legal personal representatives shall be deemed to be the holder thereof :

- 1ST SCH.** and the authority by which the permit or licence was last either granted or renewed may from time to time, on the application of those representatives, extend or further extend the said period of six months if the authority are satisfied that the extension is necessary for the purpose of winding up the deceased's estate and that no other circumstances make it undesirable.

Registers of permits and licences

35. The clerk to each appropriate authority shall keep registers in the prescribed form and containing the prescribed particulars of all bookmaker's permits, betting agency permits and betting office licences granted or renewed by that authority, and any such register shall be open during reasonable hours for inspection by any constable or, on payment of the prescribed fee, by any other person.

Service of documents

36. Any provision of this Schedule requiring any notice or other document to be given or sent to any person by the clerk to an appropriate authority or by the clerk of the peace shall be deemed to be satisfied if the document is either served personally on that person or sent to him by post at his usual or last-known residence or place of business in the United Kingdom or, in the case of a company, at the company's registered office.

Section 5.

SECOND SCHEDULE

RULES FOR LICENSED BETTING OFFICES

1. The licensed premises shall be closed throughout Good Friday, Christmas Day and every Sunday, and at such other times, if any, as may be prescribed, and shall not be used for any purpose other than the effecting of betting transactions.

2. No person who is apparently under the age of eighteen years, or who is known to any person connected with the licensee's business and present on the licensed premises to be under that age, shall be admitted to or allowed to remain on those premises, so, however, that in any proceedings for a contravention of this rule in respect of a person apparently under the said age it shall be a defence to prove that at the time of the alleged contravention he had in fact attained that age.

3. The licensee—

- (a) shall display his betting office licence on the licensed premises ;
- (b) shall exhibit on those premises such notices in such form and in such positions as may be prescribed ; and
- (c) shall comply with any prescribed restrictions with respect to the exhibiting of other written matter or of signs of any description on the licensed premises.

4. Neither the licensee nor any servant or agent of his shall, while any other person is on the licensed premises, encourage him to bet.

5. No facilities for—

- (a) seeing any television broadcast ; or

(b) hearing any sound broadcast which—

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(i) is transmitted by wireless telegraphy within the meaning of the Wireless Telegraphy Act, 1949, and is intended to be received by the general public; or

(ii) comprises matter other than information relating to events in connection with which betting transactions may be or have been effected on the licensed premises,

shall be provided or allowed to be used on the licensed premises, and neither the licensee nor any servant or agent of his shall cause or permit any such facilities to be provided at any place under his control in such a manner that they can be enjoyed by persons resorting to the licensed premises; and no music, dancing or other entertainment shall be provided or allowed, and no refreshment of any kind shall be served, on those premises.

6. Except for the licensee and any servant or agent of his, no person resorting to the licensed premises shall be allowed to use any means of direct access between the licensed premises and other premises used for the effecting with persons resorting to those other premises of transactions other than betting transactions.

THIRD SCHEDULE

Sections 22, 24
28 (2).

PERMITS FOR PROVISION OF AMUSEMENTS WITH PRIZES

1. Application for the grant of a permit for the provision of amusements with prizes on any premises may be made to the local authority by the person who is, or by any person who proposes if the permit is granted to become, the occupier of those premises; and the holder of such a permit may apply to the local authority from time to time for a renewal of his permit.

2. Subject to the provisions of this Schedule, the grant or renewal of a permit under this Schedule shall be at the discretion of the local authority, and if the permit is granted or renewed it shall cease to be in force on such date, not being earlier than three years after the date of the grant or renewal, as the authority may specify:

Provided that, where application for the renewal of a permit is made not less than one month before the date specified as aforesaid, the permit shall not cease to be in force before the authority have made their determination on the application or the application has been withdrawn.

3. Where not later than one month after the date of the coming into force of this Schedule an application for the grant of a permit under this Schedule is made in respect of any premises shown to have been used on not less than twenty-nine days during the period of twelve months immediately preceding that date for the provision of amusements with prizes, not being only such games played by means of a machine as are mentioned in section twenty-five of this Act, then, unless the premises were so used without any planning permission required in that behalf under the Town and

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Country Planning Acts, 1947 to 1959, or the Town and Country Planning (Scotland) Acts, 1947 to 1959, the local authority shall grant the permit for a period of not less than five years.

4. The local authority shall not refuse an application for the grant or renewal of a permit under this Schedule without giving the applicant or a person acting for him an opportunity of appearing before and being heard by the authority or a committee thereof, and shall not refuse an application for the renewal of such a permit otherwise than by reason of the conditions in which amusements with prizes have been provided under the permit or the manner in which those amusements have been conducted.

5. On any grant or renewal by the local authority of a permit under this Schedule there shall be paid to the authority by the applicant for the grant or renewal a fee of one pound.

6. A permit under this Schedule shall not be transferable and shall be of no effect at any time when the holder of the permit is not the occupier of the premises to which it relates; but in the event of the death of the holder of such a permit, then during the period of six months commencing with the death the permit shall be deemed to continue in force and, except for the purposes of a renewal of the permit, his legal personal representatives shall be deemed to be the holder thereof; and the local authority may from time to time, on the application of those representatives, extend or further extend the said period of six months if the authority are satisfied that the extension is necessary for the purpose of winding up the deceased's estate and that no other circumstances make it undesirable.

7. Where a local authority in England refuse any application for the grant or renewal of a permit under this Schedule, the authority shall forthwith inform the applicant of the refusal and furnish him with a written statement of the grounds thereof, and the applicant may appeal, in accordance with the provisions of the Quarter Sessions Act, 1849, to the next practicable court of quarter sessions having jurisdiction in the area of the authority and held not less than twenty-one clear days after notice of the refusal is given to him, and notice of any appeal under this paragraph shall be given to the local authority and to the clerk of the peace; and sections seven and eight of the Summary Jurisdiction (Appeals) Act, 1933 (which prescribe the courts for the hearing of certain appeals to quarter sessions) shall apply to an appeal under this paragraph as they apply in relation to an appeal from a magistrates' court.

8. Where a local authority in Scotland refuse any application for the grant or renewal of a permit under this Schedule in respect of any premises, the local authority shall forthwith notify the applicant of the refusal and furnish him with a written statement of the grounds thereof, and he may appeal, within such time, and in accordance with such rules, as may be prescribed by the Court of Session by act of sederunt, to the sheriff having jurisdiction in the area in which the premises are situated, and on any such appeal the decision of the sheriff shall be final and may include such order as to the expenses of the appeal as he thinks proper.

9. In the case of a refusal by the local authority to renew a permit under this Schedule, the permit shall not cease to be in force by virtue of paragraph 2 of this Schedule—

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- (a) until the expiration of the time within which notice of an appeal under paragraph 7 or, as the case may be, paragraph 8 of this Schedule may be given ; nor
- (b) if such notice is duly given, until the determination or abandonment of the appeal ; nor
- (c) if the appeal succeeds, until such date as may be specified by the local authority under paragraph 2 of this Schedule on renewing the permit in consequence of the allowing of the appeal.

10. In this Schedule, the expression “ local authority ”, in relation to any premises, means—

- (a) in England, the local authority (being the council of a county borough, metropolitan borough or county district or the Common Council of the City of London) within whose area the premises are situated ;
- (b) in Scotland, where the premises are situated in a burgh, the council of that burgh, and in any other case the council of the county within which the premises are situated :

Provided that, in the case of premises in Scotland situated within a district, on each occasion on which any functions under this Schedule fall to be performed in relation to those premises by the local authority, that authority shall consult with the council of that district before exercising those functions.

FOURTH SCHEDULE

Section 29 (1).

CONSEQUENTIAL PROVISIONS

1. In paragraph (3) of section three of the Racecourse Betting Act, 1928, any reference to moneys staked or bets made by means of a totalisator shall be construed as a reference to moneys staked or bets made by way of sponsored pool betting.

2. For the purposes of section one of the Betting and Lotteries Act, 1934 (which relates to the restriction of betting on tracks), the provision by the Board or by the persons having the management of an approved horse racecourse of any facilities for pool betting shall be deemed to be the operation of a totalisator by the Board or, as the case may be, by those persons.

3. In section three of the said Act of 1934 (which restricts pool betting), in the proviso to subsection (1), the reference to bets being made by means of a totalisator lawfully operated on an approved horse racecourse shall be construed as a reference to bets being made by way of sponsored pool betting.

4. In subsection (1) of section eighteen of the said Act of 1934 (which relates to the power of the Board to authorise the persons

4TH SCH. having the management of an approved horse racecourse to operate a totalisator)—

- (a) any reference to the setting up, keeping or operation of a totalisator shall be construed as a reference to the carrying on of pool betting business ; and
- (b) for the words from “by means” to “that fund” there shall be substituted the words “shall be paid to the Board, but the Board may pay”.

5. In subsection (2) of the said section eighteen, the reference to bets to be made by means of a totalisator lawfully operated on an approved horse racecourse shall be construed as a reference to bets to be made by way of sponsored pool betting and to such bets as are mentioned in paragraph (b) of subsection (1) of section eleven of this Act made with the Board or, under the authority of the Board, with the persons having the management of an approved horse racecourse.

6. Nothing in subsection (1) of section twenty-six of the said Act of 1934 with respect to the conducting of competitions in connection with a trade or business shall apply in relation to sponsored pool betting.

7. The pool betting duty shall not be charged on, and nothing in the Pool Betting Act, 1954, shall apply to, or to the receiving or negotiating of, bets made by way of sponsored pool betting ; and in subsection (2) of section four of the Finance Act, 1952, the expression “totalisator odds”, in relation to a recognised horse race, shall be construed as a reference to the odds paid on bets on that race made by way of sponsored pool betting.

8. In subsection (2) of section one hundred and forty-one of the Licensing Act, 1953 (which relates to the conviction of the holder of a justices’ licence for an offence in connection with his premises under the Betting Act, 1853), for the words from “opening” to “that Act” there shall be substituted the words “an offence in connection with his premises under subsection (2) of section three of the Betting and Lotteries Act, 1934, or under subsection (2) of section one of the Betting and Gaming Act, 1960”.

9. In section eleven of the Gaming Act, 1845 (which provides in respect of the keeping of a public billiard table without a licence and of the failure to put and keep up a notice that premises are licensed for billiards penalties by reference to the penalties for keeping a common gaming-house)—

- (a) for the words “and also” there shall be substituted the words “shall be liable to the penalties provided by paragraphs (a) and (b) of subsection (3) of section twenty-seven of the Betting and Gaming Act, 1960, and” ;
- (b) for the words from “to be proceeded against” onwards there shall be substituted the words “on summary conviction to a fine not exceeding ten pounds”.

FIFTH SCHEDULE

Section 29 (2).

**AMENDMENTS TO SECURE CONSISTENCY AND UNIFORMITY AND
FACILITATE CONSOLIDATION**

1. The penalties for offences under section one of the Betting and Loans (Infants) Act, 1892, shall, instead of those provided by subsection (1) of that section, be those provided by paragraphs (a) and (b) of subsection (3) of section twenty-seven of this Act.

2. Any person guilty of an offence under section nineteen of the Betting and Lotteries Act, 1934, shall, instead of being liable to the penalties provided by subsection (2) of section thirty of that Act, be liable on summary conviction to a fine not exceeding ten pounds.

3. Subsections (1), (4) and (5) of section twenty-seven of this Act shall, where applicable, have effect in relation to an offence under any of the following enactments, that is to say, section one of the Betting and Loans (Infants) Act, 1892, the Street Betting Act, 1906, the Betting and Lotteries Act, 1934, and the Pool Betting Act, 1954, as they have effect in relation to an offence under this Act, and accordingly sections twenty-seven and twenty-nine and subsection (3) of section thirty of the said Act of 1934, shall cease to have effect.

4. In each of the following enactments, that is to say—

(a) subsection (2) of section one, subsection (3) of section two, subsection (2) of section four, subsection (2) of section thirteen, section fourteen, subsection (1) of section twenty-three and subsection (3) of section twenty-four of the Betting and Lotteries Act, 1934; and

(b) subsection (3) of section one of the Small Lotteries and Gaming Act, 1956,

being enactments which provide that it shall be a defence in certain proceedings for the person charged to prove that an offence took place without his knowledge, for the words "without his knowledge" there shall be substituted the words "without his consent or connivance and that he exercised all due diligence to prevent it".

5. Subsection (4) of section one of the Street Betting Act, 1906 (which defines the expressions "street" and "public place" for the purposes of that section) shall cease to have effect; and for the purposes of that section the expression "street" shall have the meaning assigned by paragraphs (a) and (b) of subsection (3) of section eighteen of this Act; and section three of that Act (which relates to the application of that Act to Scotland) shall cease to have effect.

6. In the Betting and Lotteries Act, 1934—

(a) the expressions "bookmaker", "bookmaking", "pool betting" and "pool betting business" shall have the same meanings as they have for the purposes of this Act;

(b) in section three, the words "pari mutuel or" in both places where they occur shall be omitted, and in subsection (2) of that section the expression "premises" shall have the same meaning as it has for the purposes of section one of this Act;

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(c) in section twenty-six, the words "pari mutuel or" shall be omitted ;

and the expressions "bookmaker" and "bookmaking" in section fifteen of, and the Sixth Schedule to, the Finance Act, 1948, shall be construed accordingly.

7. Sections seven and eight of the Summary Jurisdiction (Appeals) Act, 1933, shall apply to appeals under subsection (2) of section sixteen of the Betting and Lotteries Act, 1934, as they apply in relation to an appeal from a magistrates' court.

8. In the First Schedule to the Betting and Lotteries Act, 1934, the expression "qualified accountant", and in the Pool Betting Act, 1954, the expression "qualified auditor", shall mean a person who is a member, or a firm all of the partners wherein are members, of one or more of the following bodies, that is to say,—

(a) the Institute of Chartered Accountants in England and Wales ;

(b) the Society of Incorporated Accountants ;

(c) the Institute of Chartered Accountants of Scotland ;

(d) the Association of Certified and Corporate Accountants ;

(e) the Institute of Chartered Accountants in Ireland ;

(f) any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948, by the Board of Trade.

9. In section twenty of the Betting and Lotteries Act, 1934, in the paragraph beginning "chief officer of police", the words from "and" where first occurring to "and" where next occurring and the words "the first mentioned expression" shall be omitted.

10. In section thirty-one of the Betting and Lotteries Act, 1934, at the end of the subsection substituted by paragraph (5) there shall be added the words "having jurisdiction in the area in which the track in respect of which the licence was held is situated, and on any such appeal the decision of the sheriff shall be final and may include such order as to the expenses of the appeal as he thinks proper".

11. In paragraph (b) of subsection (1) of section twelve of the Pool Betting Act, 1954, for the words "in accordance with such rules as to notice and otherwise as may be made" there shall be substituted the words "within such time, and in accordance with such rules, as may be prescribed".

12. The Ready Money Football Betting Act, 1920, shall cease to have effect.

13. In subsection (3) of section fourteen of the Finance Act, 1948, for the words "Nothing in this section shall apply" there shall be substituted the words "Subsection (1) of this section shall not apply".

14. In subsection (6) of section nine of the Betting and Lotteries Act, 1934, after the word "annually" there shall be inserted the words "for the whole of their licensing area".

15. In subsection (2) of section thirteen of the Betting and Lotteries Act, 1934, for the words "a track" where those words first occur there shall be substituted the words "a licensed track".

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16. In the proviso to paragraph 11 of the First Schedule to the Betting and Lotteries Act, 1934, for the words "by whom the licensing authority were appointed" there shall be substituted the words "whose functions under Part I of this Act are delegated to that joint committee".

SIXTH SCHEDULE

REPEALS

PART I

Section 15.

Enactments relating to gaming

Session and Chapter	Short Title	Extent of Repeal
33 Hen. 8. c. 9	The Unlawful Games Act, 1541.	The whole Act.
1621, c. 14 ...	Act of the Parliament of Scotland "Anent Playing at Cardes and dyce and Horse Races".	The whole Act.
9 Ann. c. 19...	The Gaming Act, 1710...	Sections two to nine.
2 Geo. 2. c. 28	The Unlawful Games Act, 1728.	The whole Act.
12 Geo. 2. c. 28	The Gaming Act, 1738...	The whole Act except sections four and eleven.
13 Geo. 2. c. 19	The Gaming Act, 1739...	The whole Act.
18 Geo. 2. c. 34	The Gaming Act, 1744...	The whole Act.
25 Geo. 2. c. 36	The Disorderly Houses Act, 1751.	In sections five, six, eight and ten, the words "gaming-houses" and "gaming-house" wherever those words occur.
58 Geo. 3. c. 70	The Disorderly Houses Act, 1818.	In section seven, the words "gaming-house" in both places where they occur.
2 & 3 Vict. c. 47	The Metropolitan Police Act, 1839.	Section forty-eight.
8 & 9 Vict. c. 109.	The Gaming Act, 1845...	The whole Act except sections ten to fourteen, seventeen and eighteen and the Third Schedule.
17 & 18 Vict. c. 38.	The Gaming Houses Act, 1854.	The whole Act.
32 & 33 Vict. c. 87.	The Prevention of Gaming (Scotland) Act, 1869.	The whole Act.
36 & 37 Vict. c. 38.	The Vagrant Act Amendment Act, 1873.	The whole Act.

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Session and Chapter	Short Title	Extent of Repeal
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Except so far as it relates to betting, section three hundred and ninety-three. In section four hundred and six, the words from "who shall be" to "hazard, or". Except so far as it relates to betting, section four hundred and seven.
3 Edw. 7. c. 33	The Burgh Police (Scotland) Act, 1903.	Except so far as it relates to betting, section fifty-one.
7 & 8 Geo. 5. c. 23.	The Gaming Machines (Scotland) Act, 1917.	The whole Act.
4 & 5 Eliz. 2. c. 45.	The Small Lotteries and Gaming Act, 1956.	In section four, subsections (2), (3) and (6), and in subsection (5) the words from "being" to "applies". In subsection (1) of section five, the words "and four".

Section 29 (3).

PART II
Other enactments

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Vict. c. 109.	The Gaming Act, 1845 ...	In section thirteen, the words "and every billiard room in every house specified in any victualler's licence".
16 & 17 Vict. c. 119.	The Betting Act, 1853 ...	The whole Act.
30 & 31 Vict. c. 134.	The Metropolitan Streets Act, 1867.	Section twenty-three.
37 & 38 Vict. c. 15.	The Betting Act, 1874 ...	The whole Act.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	So far as they relate to betting, sections three hundred and ninety-three and four hundred and seven.
3 Edw. 7. c. 33	The Burgh Police (Scotland) Act, 1903.	So far as it relates to betting, section fifty-one.
6 Edw. 7. c. 43	The Street Betting Act, 1906.	In section one, subsections (3) and (4). Section three.
10 & 11 Geo. 5. c. 52.	The Ready Money Football Betting Act, 1920.	The whole Act.
18 & 19 Geo. 5. c. 27.	The Betting (Juvenile Messengers) (Scotland) Act, 1928.	The whole Act.
18 & 19 Geo. 5. c. 41.	The Racecourse Betting Act, 1928.	In section one, subsection (2) and paragraph (a) of subsection (3). In section two, in subsection (2), the words from "and may acquire" onwards. In section three, paragraphs (4) to (7).

Session and Chapter	Short Title	Extent of Repeal
24 & 25 Geo. 5. c. 58.	The Betting and Lotteries Act, 1934.	In section three, the words "pari mutuel or" in both places where they occur, and, in paragraph (a) of subsection (1), the words "under the Racecourse Betting Act, 1928, as amended by this Act". In section eleven, in subsection (1), the words from "Notwithstanding" to "contrary" and the words from "and for" onwards. Section fifteen. In section eighteen, in subsection (1), the words "under subsection (2) of section one of the Racecourse Betting Act, 1928", and subsections (3) and (5). In section twenty, the paragraph beginning "book-maker", and in the paragraph beginning "chief officer of police" the words from "and" where first occurring to "and" where next occurring and the words "the first mentioned expression". In section twenty-six, the words "pari mutuel or". Sections twenty-seven and twenty-nine. In section thirty, subsection (3). In section thirty-one, paragraph (8). In the First Schedule, paragraph 12.
11 & 12 Geo. 6. c. 9.	The Finance (No. 2) Act, 1947.	In section six, in subsection (1), the words from "other" to "Board", and, in subsection (6), the words "'approved horse racecourse' and".
2 & 3 Eliz. 2. c. 33.	The Pool Betting Act, 1954.	In section eight, subsection (3) from the beginning to the word "and" in the second place where that word occurs. Section ten. In section eleven, in paragraph (b) of the proviso to subsection (1), the words from "on an" to the words "1928, or", and subsection (2).
7 & 8 Eliz. 2. c. 35.	The Small Lotteries and Gaming Act, 1956 (Amendment) Act, 1959.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Act, 1839	2 & 3 Vict. c. 47.
City of London Police Act, 1839	2 & 3 Vict. c. xciv.
Gaming Act, 1845	8 & 9 Vict. c. 109.
Quarter Sessions Act, 1849	12 & 13 Vict. c. 45.
Betting Act, 1853	16 & 17 Vict. c. 119.
Refreshment Houses Act, 1860... ..	23 & 24 Vict. c. 27.
Betting Act, 1874	37 & 38 Vict. c. 15.
Betting and Loans (Infants) Act, 1892	55 & 56 Vict. c. 4.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Burgh Police (Scotland) Act, 1903	3 Edw. 7. c. 33.
Street Betting Act, 1906... ..	6 Edw. 7. c. 43.
Ready Money Football Betting Act, 1920	10 & 11 Geo. 5. c. 52.
Racecourse Betting Act, 1928	18 & 19 Geo. 5. c. 41.
Summary Jurisdiction (Appeals) Act, 1933	23 & 24 Geo. 5. c. 38.
Betting and Lotteries Act, 1934	24 & 25 Geo. 5. c. 58.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Finance (No. 2) Act, 1947	11 & 12 Geo. 6. c. 9.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Finance Act, 1948	11 & 12 Geo. 6. c. 49.
Wireless Telegraphy Act, 1949	12, 13 & 14 Geo. 6. c. 54.
Finance Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 33.
Costs in Criminal Cases Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 48.
Licensing Act, 1953	1 & 2 Eliz. 2. c. 46.
Pool Betting Act, 1954	2 & 3 Eliz. 2. c. 33.
Small Lotteries and Gaming Act, 1956	4 & 5 Eliz. 2. c. 45.
Licensing (Scotland) Act, 1959	7 & 8 Eliz. 2. c. 51.

